

AO 440 (Rev. 12/09) Summons in a Civil Action

UNITED STATES DISTRICT COURT

for the

Eastern District of New York

GERRARD AND TEDDY FARMER

Plaintiff

v.

THE CITY OF NEW YORK ET AL.

Defendant

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)
)
) Civil Action No. 11-CV-2787
)
)
)

SUMMONS IN A CIVIL ACTION

To: *(Defendant's name and address)* THE CITY OF NEW YORK, POLICE OFFICERS HARRY SEPULVEDA (SHIELD NO. 26395), DALISH VEVE (SHIELD NO. 30734), POLICE SERGEANT DANIEL TUNICK (SHIELD NO. 4103) AND POLICE OFFICERS JOHN DOES 1-5

A lawsuit has been filed against you.

Within 21 days after service of this summons on you (not counting the day you received it) — or 60 days if you are the United States or a United States agency, or an officer or employee of the United States described in Fed. R. Civ. P. 12 (a)(2) or (3) — you must serve on the plaintiff an answer to the attached complaint or a motion under Rule 12 of the Federal Rules of Civil Procedure. The answer or motion must be served on the plaintiff or plaintiff's attorney, whose name and address are: Robert Marinelli
305 Broadway, 14th Floor
New York, NY 10007

If you fail to respond, judgment by default will be entered against you for the relief demanded in the complaint. You also must file your answer or motion with the court.

CLERK OF COURT

Date: _____

Signature of Clerk or Deputy Clerk

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

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GERRARD FARMER AND TEDDY FARMER,

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICERS
HARRY SEPULVEDA (SHIELD NO. 26395), DALISH
VEVE (SHIELD NO. 30734), POLICE SERGEANT
DANIEL TUNICK (SHIELD NO. 4103) AND POLICE
OFFICERS JOHN DOES 1-5.

Defendants.
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ECF CASE

**FIRST AMENDED
COMPLAINT**

11-CV-2787 (FB)(RLM)

Jury Trial Demanded

PRELIMINARY STATEMENT

1. This is a civil rights action in which the plaintiffs seek relief for the violation of their rights secured by 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. This case arises from a February 7, 2010 incident in which members of the New York City Police Department ("NYPD") subjected plaintiffs to a false arrest, excessive force, and fabricated evidence. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. This action is brought pursuant to 42 U.S.C. § 1983 and the Fourth, Sixth, and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by the aforesaid statutes and 28 U.S.C. §§ 1331 and 1343.

3. Venue is proper pursuant to 28 U.S.C. § 1391(b) and (c) because defendant City of New York is subject to personal jurisdiction in the Eastern District of New York and the event in question occurred in the Eastern District.

PARTIES

4. Plaintiffs are residents of the State of New York, County of Brooklyn.

5. The City of New York is a municipal corporation organized under the laws of the State of New York.

6. Police Officer Harry Sepulveda (“Officer Sepulveda”) is a member of the New York City Police Department who was acting under color of state law and in his capacity as a City law enforcement officer at all relevant times. Officer Sepulveda is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. Officer Sepulveda is sued in his individual and official capacities.

7. Police Officer Dalish Veve (“Officer Veve”) is a member of the New York City Police Department who was acting under color of state law and in his capacity as a City law enforcement officer at all relevant times. Officer Veve is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. Officer Veve is sued in his individual and official capacities.

8. Police Sergeant Daniel Tunick (“Sergeant Tunick”) is a member of the New York City Police Department who was acting under color of state law and in his capacity as a City law enforcement officer at all relevant times. Sergeant Tunick is liable for directly participating in the unlawful acts described herein and for failing to intervene to protect plaintiff from unconstitutional conduct. Sergeant Tunick is sued in his individual and official capacities

STATEMENT OF FACTS

9. On February 7, 2010 at approximately 2:25 p.m., in the vicinity of 1407 Fulton Street in Brooklyn, New York, Gerard Farmer exited a vehicle in order use a bank ATM machine. Gerard's brother, Teddy, was driving the vehicle. Teddy was lawfully in his running vehicle; waiting for a parked vehicle to pull out so that he could park.

10. Defendant Officers, despite plaintiffs' lack of culpable conduct, wrote out a parking summons. When Gerard asked why the car was being ticketed, he was poked in the chest by one of the officers. When Gerard asked that the officer not poke him, he was roughly thrown against a car by one of the officers. The other officer, removed his baton and struck Gerard in the back of his legs.

11. When Teddy exited the car to ask why his brother was being arrested, one of the officers shoved Teddy. At this point, a number of other officers arrived at the scene.

12. In the course of formally arresting plaintiffs, the officers handcuffed them excessively tightly, so as to cause marks to plaintiffs' wrists and interfere with plaintiffs' circulation.

13. While Plaintiffs were confined in Brooklyn Central Booking, the officers misrepresented to the Kings County District Attorney's Office that Plaintiffs had committed crimes.

14. On February 8, 2010 at around 11:00 p.m., Plaintiffs were arraigned and both ultimately received ACD's.

15. As a result of defendants' actions, plaintiffs experienced pain, physical injuries, emotional distress, fear, embarrassment, humiliation, discomfort, loss of liberty, and damage to reputation.

FIRST CLAIM

(§1983 FALSE ARREST)

16. Plaintiff repeats the foregoing allegations.

17. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

18. Plaintiff was aware of his confinement and did not consent to it.

19. The confinement was not otherwise privileged.

20. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages alleged.

SECOND CLAIM

(§1983 UNREASONABLE FORCE)

21. Plaintiff repeats the foregoing allegations.

22. Defendants violated the Fourth and Fourteenth Amendments because they used a degree of force on Plaintiff that was unreasonable because it was unnecessary under the circumstances.

23. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages alleged.

THIRD CLAIM

(§1983 FABRICATION OF EVIDENCE)

24. Plaintiff repeats the foregoing allegations.

25. The individual Defendants created false evidence against Plaintiff and forwarded such false evidence to the Kings County District Attorney's Office.

26. In creating such false evidence, the Defendants violated Plaintiff's constitutional right to due process.

27. The aforesaid conduct by the City of New York violated Plaintiffs' rights under 42 U.S.C. § 1983 and the Fifth and Fourteenth Amendments to the United States Constitution.

28. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages alleged.

FOURTH CLAIM

(§1983 MALICIOUS PROSECUTION)

29. Plaintiff repeats the foregoing allegations.

30. Defendant Officers commenced a criminal proceeding against Plaintiff.

31. Such proceeding terminated in favor of Plaintiff.

32. No probable cause existed for the commencement of the criminal proceeding.

33. Defendant Officers commenced the proceeding with actual malice.

34. In maliciously prosecuting Plaintiff, Defendants violated the Fourth and Fourteenth Amendments to the United States Constitution.

35. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages alleged.

EIGHTH CLAIM

(§1983 "MONELL" CLAIM)

36. Plaintiff repeats the foregoing allegations.

37. The City, through policies, practices and customs, directly caused the constitutional violations suffered by Plaintiff.

38. The City, through its police department, has had and still has hiring, training, promotion and retention practices that it knows will lead to the hiring, training, promotion of police officers unable to discharge their duties in accordance with the constitution.

39. The City, through its police department, has a *de facto* quota policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

40. The City, at all relevant times, was aware that these individual Defendants routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

41. The City, at all relevant times, was aware that these individual defendants are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

42. These policies, practices and customs were the moving force behind Plaintiff's injuries.

WHEREFORE, plaintiffs demand a jury trial and the following relief jointly and severally against the defendants:

- a. Compensatory damages in an amount to be determined by a jury;
 - b. Punitive damages in an amount to be determined by a jury;
 - c. Costs, interest and attorney's fees;
 - d. Such other and further relief as this Court may deem just and proper,
- including injunctive and declaratory relief.

DATED: November 7, 2011

New York, New York

ROBERT MARINELLI
305 Broadway, 14th Floor
New York, New York 10007
(212) 822-1427

A handwritten signature in blue ink, appearing to be 'RM', is written over a horizontal line.

ROBERT MARINELLI (RM-4242)